

HOUSE No. 2059

The Commonwealth of Massachusetts

PRESENTED BY:

Steven George Xiarhos

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to eliminating cashless bail.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/13/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/11/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/25/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>9/22/2025</i>

HOUSE No. 2059

By Representative Xiarhos of Barnstable, a petition (accompanied by bill, House, No. 2059) of Steven George Xiarhos and Joseph D. McKenna relative to cashless bail. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to eliminating cashless bail.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION ONE. Chapter 262 of the General Laws, as most recently amended by Section
2 157 of Chapter 140 of the Acts of 2024, is hereby amended by striking out Section 24 and
3 inserting in place thereof the following section:-

4 Section 24. (a) The maximum fee to be charged by a person authorized to take bail or
5 release on personal recognizance in the case of a person arrested for any misdemeanor or felony
6 shall be \$80.

7 (b) No person authorized to take bail shall delegate: (i) the setting or taking of bail; or (ii)
8 the setting or taking of release on personal recognizance to any other person. Fee-splitting
9 arrangements shall be prohibited.

10 (c) A person authorized to take bail shall receive the fee under subsection (a) after
11 determining the terms of release and the prisoner ultimately recognizes out-of-court.